

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JESUS MOREL, AND
DIANA RIVERA,

Plaintiffs,

Index No.:

SUMMONS

-against-

Plaintiff designates New York

THE CITY OF NEW YORK,
POLICE OFFICER KEVIN OUELLETTE, SHIELD # 22181
and POLICE OFFICERS JOHN DOES #S 1-3,

Venue is Based on Defendants'
Place of Business

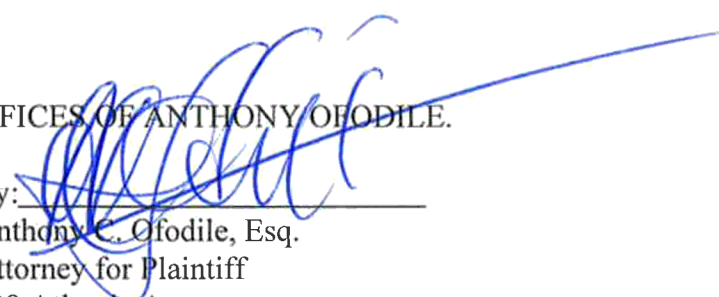
Defendants.
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action by filing same at New York County Supreme Court, located at 60 Centre, New York, New York 10007 and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 (twenty) days after the service of this Summons, exclusive of the day of service (or within 30 (thirty) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the Complaint annexed herewith.

Dated: Brooklyn, New York
this 4th day of May, 2021

LAW OFFICES OF ANTHONY OFODILE.

By: 
Anthony C. Ofodile, Esq.
Attorney for Plaintiff
498 Atlantic Avenue
Brooklyn, N.Y. 11217
(718) 852-8300

Index Number Assigned:

Date of Filing with Clerk of Court:

Address and Location of Court House:

60 Centre Street

New York, New York 10007

Plaintiffs' Address:

Jesus Morel

Diana Rivera

C/o Ofodile & Associates

498 Atlantic Avenue

Brooklyn, New York 11217

Defendants' Addresses:

City of New York

C/o Corporations Counsel of the City of New York

100 Church Street

New York, New York 10007

Police Officer Kevin Ouellette Shield \$ 22181,

Police Officers John Does #s 1-3

10th Police Precinct

230 W 20th St

New York, NY 10011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JESUS MOREL, AND
DIANA RIVERA,

Plaintiffs,

Index No.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
POLICE OFFICER KEVIN OUELLETTE, SHIELD # 22181
and POLICE OFFICERS JOHN DOES #S 1-3,

Defendants.

JURY TRIAL DEMANDED

-----X
Plaintiffs, Jesus Morel and Diana Rivera by their Attorneys, Law Offices of Anthony
Ofodile, complaining of the Defendants, the City of New York, Police Officer Kevin Ouellette
Shield No. 22181, and Police Officers John Does #s 1-3, allege as follows:

JURISDICTION AND VENUE

1. This is an action at law to redress the assault and battery committed against Plaintiff in violation of the common law as well as for unreasonable search and seizure and excessive force used against Plaintiff during his arrest violation of his Fourth and Fourteenth Amendments to the U.S. Constitution and 42 U.S.C. § 1983. This case is also brought under Article 1, Section 12 of the New York State Constitution for violation of the State constitutional right against excessive force.

2. The Supreme Court has exclusive jurisdiction as the amount claimed in this suit is far above the jurisdiction of any lower that might otherwise have jurisdiction.

3. Venue is proper in the New York County as the events occurred in New York County, Plaintiff Morel resides in New York County and the City Defendants are residents of

New York County.

PARTIES

4. At all times material and relevant to the facts of this case, Plaintiff Jesus Morel resides in New York County, New York, within the jurisdiction of this Court.

5. At all times relevant and material to this case, Plaintiff Diana Rivera is Jesus Morel's common law wife /domestic partner and as a result of the battery and assault on Plaintiff which has rendered him lame, infirm, and brain damaged, has sustained loss of consortium, been forced to tend to him, miss work, and expend her resources taking care of him

6. At all times relevant and material to this case, Defendant City of New York was and still is a municipal corporation incorporated under the laws of the State of New York and was the employer of the individual defendants and is liable for their actions under the *respondeat superior* rule, and under the principle of principal - agent relationship under the common law as well as under Article 1 section 12 of the New York State Constitution.

7. At all times relevant and material to this case, upon information and belief, Defendants Police Officer Kevin Ouelette Shield No. 22181, and Police Officers John Does #s 1-3, (collectively referred to as Police Officers), were employees of the City of New York, employed in its Police Department in the 10th Precinct in New York County.

STATUTE OF LIMITATIONS

8. This action is timely commenced as the statute of limitations was tolled by the Governor's exercise of Emergency Powers as a result of COVID-19 and the Governor's Executive Orders tolled the statute of limitations from March 20, 2020, to November 4, 2020, a period of more than 210 days and this action is timely filed based on the tolling of the statute of

limitations.

FULFILLMENT OF ADMINISTRATIVE REMEDIES

9. Plaintiffs filed their Notice of Claim with the Comptroller of the City of New York within 90 days of the incident complained of and this action is filed within one year and ninety days (as tolled by COVID Emergency Orders).

FACTUAL ALLEGATIONS

10. This is a claim for assault, battery and excessive force used on Plaintiff Jesus Morel and, for loss of services by his domestic partner Diana Rivera, against the City of New York, Police Officer Ouellette and Officers John Does #s 1-3 and/or other agents of the City of New York at The New York City Police Department that caused Plaintiffs pain and suffering, significant financial losses, as well as emotional and mental distress. Plaintiffs also claim that Respondents' negligence caused and/or contributed to their injuries.

11. On November 9, 2019, in the vicinity of 345 8th Avenue, New York, New York, at approximately 21:00 o'clock, Plaintiff Jesus Morel was in a scuffle outside 345 8th Avenue with an individual who, upon information and belief, resided in that premises.

12. As a result of the scuffle, Police Officer Kevin Ouellette and Police Officers John Does #s 1-3, arrived at the scene and as Plaintiff Morel was leaving the scene, they viciously attacked and assaulted Plaintiff Morel.

13. Mr. Morel's head was violently slammed against a wall by the Defendants.

14. Upon information and belief, other objects with which Morel was assaulted included ASPs, in addition to fists and kicks. The focus of the assault on Morel was more on his head.

15. Upon information and belief, the encounter between Mr. Morel and the individual Defendants was caught on their body cameras.

16. As a result of the assault, Plaintiff sustained permanent brain injuries in addition to other physical injuries and was hospitalized at Bellevue Hospital from November 9, 2019, until December 12, 2019, for treatment of his injuries, which included several brain surgeries.

17. Plaintiff sustained such traumatic brain injuries as a result of this assault that his left side was paralyzed and he was unable to walk without a walking stick or a walker, and upon information and belief, he has been rendered infirm and invalid and would be so rendered for the rest of his life.

18. Plaintiff has been advised that he sustained serious and permanent brain injuries.

19. Plaintiff's injuries include, but are not limited to serious memory loss, the paralysis which has improved though Plaintiff still has difficulties ambulating and lacks strength in his left side, intermittent headaches, and Plaintiff, upon information and belief, would need continued treatment and care for possibly the rest of his life.

20. Plaintiff Diana Rivera is Jesus Morel's domestic partner and has had to take time off work and her life attending to Mr. Morel and has lost the intimacy and other household services previously provided by Jesus Morel and upon information and belief, would never recover them to a reasonable and manageable degree.

21. Plaintiff Jesus Morel claims \$12,000,000.00 (twelve million dollars) for past pain and suffering as well as for future pain and suffering as well as for past and future medical care and rehabilitative services to be needed by him as a result of the injuries sustained. Diana Rivera claims \$600,000.00 (six hundred thousand dollars) for loss of services, lost of income, loss of

support and affection sustained and to be sustained as a result of the injuries caused by Respondents to Jesus Morel.

AS FOR A FIRST CAUSE OF ACTION

22. Plaintiffs repeat and re-allege paragraphs 1 through 21 as if each paragraph is repeated and re-alleged verbatim herein.

23. The individual Defendants subjected Plaintiff Jesus Morel to unnecessary, unjustified and unwarranted force during his arrest in violation of his common law right not to be subjected to assault and battery when they viciously and violently slammed his head against a wall causing serious and permanent brain injuries that required several surgeries which has left him lame and infirm, among other force that Plaintiff Morel was subjected to.

AS FOR A SECOND CAUSE OF ACTION

24. Plaintiffs repeat and re-allege paragraphs 1 through 23 as if each paragraph is repeated and re-alleged verbatim herein.

25. Plaintiff Diana Rivera is Jesus Morel's domestic partner as defined by New York City's Domestic Partnership Law and suffered loss of consortium as a result of the actions of the individual defendants and has had to miss work, expend time and resources to care for Plaintiff Morel and has therefore been damaged and is entitled to damages against the responsible individual defendants.

AS FOR A THIRD CAUSE OF ACTION

26. Plaintiffs repeat and re-allege paragraphs 1 through 25 as if each paragraph is repeated and re-alleged verbatim herein.

27. Police Officer Kevin Ouellette and the other individual Defendants subjected

Plaintiff Jesus Morel to unnecessary, unjustified and unwarranted force during his arrest in violation of his 4th Amendment Constitutional right not to be subjected to excessive force when they viciously and violently slammed his head against a wall causing serious and permanent brain injuries that required several surgeries which has left him lame and infirm, among other force that Plaintiff Morel was subjected to.

AS FOR A FOURTH CAUSE OF ACTION

28. Plaintiffs repeat and re-allege paragraphs 1 through 27 as if each paragraph is repeated and re-alleged verbatim herein.

29. Officer Kevin Ouellette and the other individual Defendants failed to intervene to stop one another and each other from subjecting Plaintiff to excessive force in violation of his Fourth Amendment Constitutional rights when each had the opportunity to intervene but failed to do so in violation of his 4th Amendment Constitutional right to be

AS FOR A FIFTH CAUSE OF ACTION

30. Plaintiffs repeat and re-allege paragraphs 1 through 27 as if each paragraph is repeated and re-alleged verbatim herein.

31. Police Officer Kevin Ouellette and the other individual Defendants subjected Plaintiff Jesus Morel to unnecessary, unjustified and unwarranted force during his arrest in violation of Article 1 § 12 of the New York State Constitution when they viciously and violently slammed his head against a wall causing serious and permanent brain injuries that required several surgeries which has left him lame and infirm, among other force that Plaintiff Morel was subjected to.

AS FOR A SIXTH CAUSE OF ACTION

32. Plaintiffs repeat and re-allege paragraphs 1 through 31 as if each paragraph is repeated and re-alleged verbatim herein.

33. The City of New York is the employer of the individual Defendants and is responsible and liable for their actions under the common law rule of respondeat superior as well as under the principal-agent doctrine and Plaintiffs are therefore entitled to damages against it for the actions of the Defendants complained of under the First, Second and 5th Causes of Actions.

34. The actions of the individual defendants were intentional, callous, reckless and done in intentional and/or reckless violation of Plaintiff Morel's rights and Plaintiff Morel is therefore entitled to punitive damages against the individual defendants, jointly and severally.

WHEREFORE, Plaintiffs pray the Court for judgment as follows:

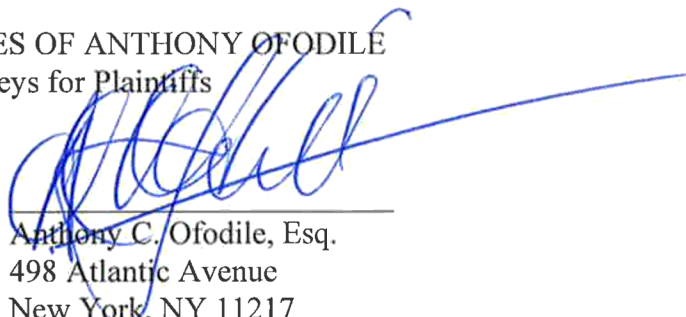
For each of the constitutional and statutory violations hereinabove complained of:

- i. general compensatory damages for past pain and suffering as well as for future pain and suffering in an amount that would adequately compensate each Plaintiff for the violation of his rights and for the physical, emotional, and mental distress – against all individual Defendants, jointly and severally;
- ii. specific damages in the amount to be proved at trial and in accordance with proof for the costs of future medical care, rehabilitative care, psychiatric and psychological care that Plaintiff would require for the rest of his life as a result of Defendants' actions – against all Defendants, jointly and severally;
- iii. specific damages for the income that Plaintiffs lost and would lose as a result of Defendants' actions – against all Defendants, jointly and severally;

- iv. punitive damages in an amount sufficient to punish the individual Defendants and deter others like them from repeating such unlawful conduct – against the individual Defendants, jointly and severally;
- v. compensation for loss of consortium and future loss of consortium to Plaintiff Rivera as well as associated costs for the services she provided and would provide in the future, in an amount to be proved at trial and in accordance with the proof, against defendants, jointly and severally;
- vi. attorneys' fees for the constitutional claims made in this suit against the individual defendants;
- vii. costs and disbursements of this action – against all Defendants, jointly and severally; and
- vi. such other relief as the court deems just and proper.

Dated: Brooklyn, New York
May 4, 2021

LAW OFFICES OF ANTHONY OFODILE
Attorneys for Plaintiffs

By: 

Anthony C. Ofodile, Esq.
498 Atlantic Avenue
New York, NY 11217
Tel: (718) 852-8300
ACOfodile@aol.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JESUS MOREL, AND
DIANA RIVERA,

Index No.:

Plaintiffs,

-against-

ATTORNEY VERIFICATION

THE CITY OF NEW YORK,
POLICE OFFICER KEVIN OUELLETTE, SHIELD # 22181
and POLICE OFFICERS JOHN DOES #S 1-3,

Defendants.
-----X

Anthony C. Ofodile, an attorney duly admitted to practice law in the State of New York
affirms under penalty of perjury as follows:

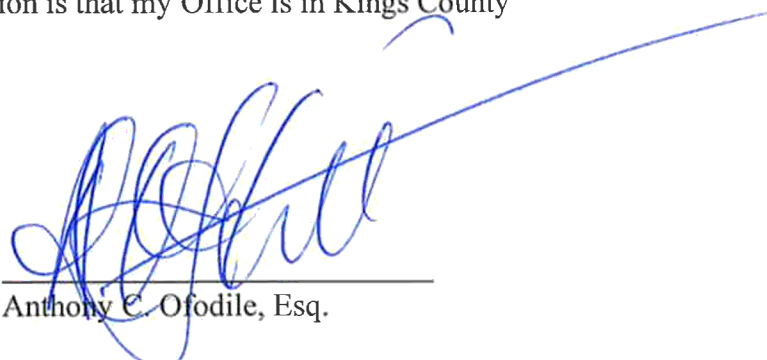
1. I am the Principal at the LAW OFFICES OF ANTHONY OFODILE the Attorneys for
the Plaintiffs in the above referenced case as such I am fully familiar with the facts of this case.

2. I make this Attorney Verification as the Attorney for Plaintiffs herein.

3. The source of my knowledge and familiarity with the facts of this case is through my
meetings with the Plaintiffs, phone calls with them, examination of relevant documents,
including medical records, among other records and I believe the facts affirmed herein to be true
and for those that are asserted to be upon information and believe, I also believe them to true.

4. The reason for the Attorney Verification is that my Office is in Kings County
while the Plaintiffs reside in New York County.

Affirmed: Brooklyn, New York
May 4, 2021



Anthony C. Ofodile, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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THE CITY OF NEW YORK,
POLICE OFFICER KEVIN OUELLETTE, SHIELD # 22181
and POLICE OFFICERS JOHN DOES #S 1-3,

Defendants.
-----X

X-----X

SUMMONS & VERIFIED COMPLAINT

X-----X

Signature (Rule 130-1.1-a)

X-----X

Dated: Brooklyn, New York
May 4, 2021

LAW OFFICES OF ANTHONY OFODILE
Attorneys for Plaintiff
498 Atlantic Avenue
Brooklyn, New York 11217
(718) 852-8300